

Mukesh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 August 2022 · WRIT - C No. - 20705 of 2022 · **Writ disposed; liberty to object under para 6.8; coercive action stayed eight weeks.**

HEADNOTE

A writ seeking tubewell supply and quashing of a Rs. 1,63,061 demand was disposed without merits. The consumer was left to object under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, with time-bound disposal after hearing and a limited stay of coercive recovery.

FACTUAL SUMMARY

Mukesh approached the Allahabad High Court seeking a mandamus to supply electricity to his tubewell and certiorari to quash a demand notice of Rs. 1,63,061. Counsel for the distribution licensee stated that the petitioner could file an objection against the demand, to be decided within a time-bound period. The Court did not examine the merits and disposed of the writ, leaving the consumer to object under paragraph 6.8 of the Supply Code, with a limited stay of coercive recovery.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

paragraph 6.8 objection as alternate remedy to writ against demand

HOLDING

Without expressing any opinion on merits, a writ challenging a demand of Rs. 1,63,061 and seeking tubewell connection is disposed of with liberty to submit an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; the authority shall decide it in accordance with law within the next four weeks after hearing, and coercive action on the demand stands stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ against a Rs. 1,63,061 demand (and for tubewell connection) disposed without merits; consumer given liberty to object under paragraph 6.8, with time-bound disposal after hearing and a limited stay of coercive recovery. ¶ 1

alternative-remedy-statutory-appeal-6.8 Mandamus and certiorari refused on the electricity dispute; the consumer was relegated to the statutory paragraph 6.8 objection before respondent No. 3. ¶ 1

assessment-6.8-alternate-remedy Challenge to the impugned electricity demand was sent to the paragraph 6.8 objection route rather than decided on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE IMPUGNED DEMAND OF RS. 1,63,061

No opinion expressed; relegated to a paragraph 6.8 objection. ¶ 1

NOT DECIDED — MANDAMUS FOR TUBEWELL ELECTRIC CONNECTION

Writ disposed without grant or refusal of the connection prayer. ¶ 1

